

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS CAPELLA,

Plaintiff,

v.

THE CITY OF NEW YORK, FRANCI SANCHEZ,
KEVIN OUTLAW and JOHN DOE,

Defendants.

Index No.

Summons

Index No. Purchased:

To the above named Defendant(s)

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

SGT. FRANCI SANCHEZ
1 BRONX RIVER PARKWAY
BRONX, NY 10462

NYPD OFFICER KEVIN OUTLAW
1 BRONX RIVER PARKWAY
BRONX, NY 10462

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: July 21, 2020
New York, NY

MICHAEL J. REDENBURG, ESQ. PC

By: Michael J. Redenburg
Attorney for Plaintiff
32 Broadway, Ste. 811
New York, NY 10004
1-212-240-9465 (Phone)
1-917-591-1667 (Fax)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS CAPELLA,

Plaintiff,

v.

THE CITY OF NEW YORK, FRANCI SANCHEZ,
KEVIN OUTLAW and JOHN DOE,

Defendants.

Plaintiff's Verified
Complaint

Plaintiff, by his attorney, MICHAEL J. REDENBURG, ESQ.,
P.C., complaining of the defendants, respectfully alleges as
follows:

AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF, LUIS CAPELLA:

1. That at all times hereinafter mentioned, and at the
time of the occurrence hereinafter more particularly set forth,
defendant, THE CITY OF NEW YORK, was and still is a municipal
corporation, duly organized and existing under and pursuant to
the Laws of the State of New York, under its corporate name,
style and title of THE CITY OF NEW YORK.

2. That prior to the commencement of this action and
within ninety (90) days of the happening of the occurrence as
hereafter more particularly set forth, plaintiff duly served
upon defendant, THE CITY OF NEW YORK, a Notice of Claim and that
thirty (30) days have elapsed or expired and said claim has not
been adjusted or paid; that this action is brought within one
year and ninety days of the happening of said occurrence.

3. That plaintiff, LUIS CAPELLA, has been examined by
defendant, THE CITY OF NEW YORK, its agents, servants and/or

employees, pursuant to notice, and said plaintiff has otherwise complied with the requirements of Section 50-H of the General Municipal Law.

4. At all times hereinafter mentioned, defendant, SGT. FRANCI SANCHEZ, was employed by defendant, THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, defendant, NYPD OFFICER KEVIN OUTLAW, was employed by defendant, THE CITY OF NEW YORK.

6. Upon information and belief, that at all times hereinafter mentioned, defendant, NYPD OFFICERS "JOHN DOES", the name being fictitious, were employed by defendant, THE CITY OF NEW YORK.

7. Upon information and belief, that at all times hereinafter mentioned, defendant, SGT. FRANCI SANCHEZ, acted as the agent, servant and/or employee of the defendant, THE CITY OF NEW YORK and acted in the course of her employment.

8. Upon information and belief, that at all times hereinafter mentioned, defendant, NYPD OFFICER KEVIN OUTLAW, acted as the agent, servant and/or employee of the defendant, THE CITY OF NEW YORK and acted in the course of his employment.

9. Upon information and belief, that at all times hereinafter mentioned, defendants, NYPD OFFICERS "JOHN DOES", acted as the agents, servants and/or employees of the defendant, THE CITY OF NEW YORK and acted in the course of their employment.

10. That at all times hereinafter mentioned, and at the time of the occurrence hereinafter more particularly set forth, plaintiff, LUIS CAPELLA, was rightfully and lawfully a passenger in a vehicle being driven by another individual, Kenny Blanco.

11. At the time of the occurrence hereinafter more particularly set forth, and while plaintiff, LUIS CAPELLA, was a passenger in a vehicle being driven by another individual, Kenny Blanco, said vehicle came into contact with a tractor-trailer on or about I-95, at or near the Orchard Beach Exit.

12. That on October 19, 2019, at approximately 3:35 a.m. the plaintiff, LUIS CAPELLA was rightfully and lawfully seated in the rear of a vehicle located on or about I-95, at or near the Orchard Beach Exit, when officers, including SGT. FRANCI SANCHEZ arrived on the scene.

13. SGT. FRANCI SANCHEZ asked plaintiff, LUIS CAPELLA, who had been driving the vehicle, and plaintiff pointed to Kenny Blanco.

14. SGT. FRANCI SANCHEZ then asked the tow truck driver if he saw anyone behind the wheel of the vehicle and the tow-truck driver responded, "No."

15. SGT. FRANCI SANCHEZ then stated, that since he couldn't "put anyone behind the wheel of the vehicle," he couldn't arrest anyone.

16. NYPD OFFICER KEVIN OUTLAW then asked Kenny Blanco, in

many differing variations, "who was driving the car." Kenny Blanco denied having driven the car.

17. Plaintiff, LUIS CAPELLA, was then given a breathalyzer test, and based on the results of said test, was handcuffed, arrested and charged with DWI.

18. Plaintiff was transported to the 45th Precinct where he was photographed, fingerprinted and processed. Plaintiff spent 2-3 hours at the precinct.

19. Plaintiff was subsequently transferred to Central Booking where he remained for approximately twenty-eight (28) hours.

20. Plaintiff was arraigned and released and then attended court three-four more times before the case was dismissed in the entirety. The Prosecutor advised the Criminal Court Judge that the People could never place the plaintiff, LUIS CAPELLA, in operation of the vehicle.

AS AND FOR A SECOND CAUSE OF ACTION
FOR EXEMPLARY AND/OR PUNITIVE DAMAGES

ON BEHALF OF PLAINTIFF

LUIS CAPELLA:

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "20" inclusive, with the same force and effect as if here again at length set forth.

22. That on or about the 19th day of October, 2019, at

approximately 3:35 a.m., plaintiff was lawfully and properly in a vehicle in the vicinity of I-95, at or near the Orchard Beach Exit when Defendant SGT. FRANCI SANCHEZ and other officers affiliated with defendant, THE CITY OF NEW YORK, caused Plaintiff to be handcuffed, falsely arrested, falsely imprisoned, maliciously prosecuted and subjected plaintiff to a number of other acts at the hands of said SGT. and/or officers, and the defendants, and each of them, their respective agents, servants and/or employees, at that time, and without any just cause or provocation, caused the injuries to Plaintiff herein.

23. That on or about the 19th day of October, 2019, at approximately 3:35 a.m., the aforesaid defendants, and/or each of them, their respective agents, servants and/or employees, without any just cause or provocation, abused process and willfully had the plaintiff, LUIS CAPELLA, arrested, imprisoned, maliciously prosecuted and intentionally inflicted emotional distress upon the plaintiff and by said acts defamed the plaintiff.

24. That by reason of the premises aforesaid, this plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ABUSE
OF PROCESS ON BEHALF OF PLAINTIFF:

25. That this plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "24" inclusive,

with the same force and effect as if here again at length set forth.

26. That the defendants, and each of them, their respective agents, servants and/or employees, arrested plaintiff, LUIS CAPELLA, without just cause or provocation and thereby used legally issued and/or lawful process illegally and/or improperly and/or for a purpose for which it was not intended.

27. That by reason of the premises aforesaid, this plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR FALSE ARREST OF PLAINTIFF:

28. That this plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "27" inclusive, with the same force and effect as if here again at length set forth.

29. That the defendants, and each of them, their respective agents, servants and/or employees, arrested the plaintiff and handcuffed him without just cause or provocation thereby restricting his movements and freedom of choice as to where he wished to go and what he wished to do.

30. That by reason of the premises aforesaid, this plaintiff has been damaged in an amount which exceeds the

jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT OF PLAINTIFF:

31. That this plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "30" inclusive, with the same force and effect as if here again at length set forth.

32. That the defendants, and each of them, their respective agents, servants and/or employees, imprisoned the plaintiffs without just cause or provocation thereby restricting his movements and freedom of choice as to where he wished to go and what he wished to do.

33. That by reason of the premises aforesaid, this plaintiff suffered damages in an amount which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION OF PLAINTIFF, LUIS CAPELLA:

34. That this plaintiff, LUIS CAPELLA, repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "33" inclusive, with the same force and effect as if here again at length set forth.

35. That defendants, and each of them, their respective agents, servants and/or employees, without just cause or provocation, and after first arresting and then imprisoning plaintiff, LUIS CAPELLA, caused plaintiff to be hailed into court on the false and fraudulent charges upon which the defendants arrested and imprisoned plaintiff, LUIS CAPELLA.

36. That by reason of the premises aforesaid, this plaintiff, LUIS CAPELLA, suffered damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, LUIS CAPELLA, demands judgment against the defendants, and each of them, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on each of his respective causes of action, as set forth herein, together with the costs and disbursements of this action.

Michael J. Redenburg

MICHAEL J. REDENBURG, ESQ, PC
Attorney for Plaintiffs
32 Broadway, Suite 811
New York, NY 10004
212-240-9465

VERIFICATION

STATE OF NEW YORK)

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